

the number 2 lane, which commercial trucks are restricted, before the collision. This data bears directly on liability and causation.

The motion is **GRANTED** as to RFP Nos. 95 and 106. E N Logistics shall serve verified further responses without objection, from a person with knowledge of E N Logistics' Rigbot account and data retention practices, that comply with CCP §§ 2031.220 and 2031.230, including, if any responsive data is no longer accessible, a statement of when and how it became unavailable and what preservation steps were taken following the collision, and shall produce all responsive GPS/telematics position data in its possession, custody, or control, including Rigbot route history data.

Ruling: SUSTAIN Plaintiff's Evidentiary Objections. **GRANT** Plaintiff's Motion to Compel Further Responses to Request for Production of Documents, Set Two, Nos. 80, 81, 90, 95, and 106. **Defendant is to provide a further response and production within 10 days.**

6.

CASE #	CASE NAME	HEARING NAME
CVRI2501734	HOWARD-CO vs CITY OF JURUPA VALLEY	MOTION FOR AN ORDER THAT PLAINTIFF FILE AN UNDERTAKING TO SECURE AN AWARD OF COSTS & FEES

Tentative Ruling:

a. Waiver – Code of Civil Procedure section 995.240

The only issue that remains is whether the bond should be waived or reduced based upon Plaintiff's indigency or hardship.

The court may waive or significantly reduce the amount of an undertaking if the plaintiff establishes indigency because "access trumps comfort." (*Alshafie v. Lallande* (2009) 171 Cal.App.4th 421, 429.) This is so even if the defendant establishes grounds for an undertaking. (*Id.*) The trial court has the discretion to waive a provision for a bond in an action or proceeding and make such orders as may be appropriate as if the bond were given, if the court determines that the principal is unable to give the bond because: (1) the principal is indigent, and (2) unable to obtain sufficient sureties, whether personal or admitted surety insurers. (Code Civ. Proc., § 995.240.)

"[A] party formally seeking in forma pauperis status to be relieved of paying specified court fees and costs, which we believe could include a section 1030 undertaking as an additional court fee or cost...must complete a mandatory Judicial Council form (currently designated form FW-001) and provide the specified financial information¹. [Citations.] An applicant who is not receiving government benefits from

¹ Judicial Council Form FW-011, "Request to Waive Court Fees," requires an applicant to list gross monthly income, household income, all financial accounts, vehicles, personal property (jewelry, furniture,

certain public assistance and supplemental income programs or whose monthly income exceeds 125 percent of the current monthly federal poverty guidelines may nevertheless qualify to proceed in forma pauperis if his or her income is not sufficient to pay for court fees and costs as well as the common necessities of life for the applicant and the applicant's family." (*Alshafie, supra*, 174 Cal.App.4th at 434.)

"A plaintiff who has been granted in forma pauperis status has the right to a waiver of the undertaking. However, a plaintiff is not obligated to obtain in forma pauperis status to be entitled to a waiver of the section 1030 bond requirement. [Citations.] Under these circumstances, when the plaintiff has, for whatever reason, elected not to seek in forma pauperis status, there is no rigid standard for the requisite showing of indigency; and, as discussed, it ultimately remains within the court's discretion to determine whether to grant a waiver. [Citations.] Certainly, however, a plaintiff seeking such a waiver would be well advised to provide the detailed financial information requested on the mandatory Judicial Council form for obtaining in forma pauperis status." (*Alshafie, supra*, 171 Cal.App.4th at 434.)

If the trial court has already granted a plaintiff leave to proceed in forma pauperis, the trial court acts arbitrarily and capriciously if it refuses to vacate or reduce the amount of the undertaking. (*Baltayan, supra*, 90 Cal.App.4th at 1435.) And even if a fee waiver has not been obtained, indigency depends on the litigant's individual situation. (*Alshafie, supra*, 171 Cal.App.4th at 435, 435.) As it is into just out-of-state plaintiffs who earn a low income that may be entitled to relief from requirement of posting of undertaking; not only must courts exempt poor people entirely, but they may have to reduce the security bond required for middle-income litigants as well. (*Id.* at 46.)

Here, Plaintiff re-filed her opposition but additionally includes her own declaration. Plaintiff testified that due to her injury from April 11, 2024, she was unable to work for approximately nine months and sustained a loss of earnings. (Plaintiff Decl., ¶2.) At the time of Plaintiff's injury, she was working 30 hours per week at Stater Bros. at \$18.50 an hour. (*Ibid.*) Based on the foregoing, Plaintiff's monthly income was approximately \$2,404, and she sustained a loss of \$21,645. (*Ibid.*) Due to a complete dislocation of Plaintiff's ankle and fractures to her tibia and fibula that required surgical intervention with permanent internal hardware, Plaintiff is unable to work in the same or similar capacity, continues to have reduced mobility, unable to stand or walk for prolonged periods, and cannot work as she could prior to the injuries. (*Id.* at ¶¶4-5.) Plaintiff includes a Request to Waive Court Fees form with her declaration as part of her evidence showing inability to pay the security undertaking. (*Id.* at ¶6, Attachment.) The waiver request discloses a monthly income of \$2,470: child support of \$530; current employment at Lake Havasu Unified School District as a Special Education Paraprofessional of \$1200; front desk at Quality Inn and Suites of \$500, and independent tutor at \$240. (*Id.* at ¶3, Attachment.) Taken together, aside from child support, Plaintiff's entire income now is less than what she was making at Stater Bros. Plaintiff does not appear to have any other assets or investments sufficient to cover the cost of the undertaking.

furs, stocks, bonds, etc.), and monthly deductions and expenses, including rent or house payments, food and household supplies, utilities, transportation expenses, etc.

When an out-of-state plaintiff has, for whatever reason, elected not to seek in forma pauperis status, there is no rigid standard for requisite showing of indigency that plaintiff must make in order to obtain waiver of security for costs, and it ultimately remains within the trial court's discretion to determine whether to grant waiver. (*Alshafie v. Llande* (2009) Cal.App.4th 421, 434.) In *Baltayan v. Estate of Getemyan* (2001) 90 Cal.App.4th 1427, the court states, "not only must the courts exempt poor people entirely, but they may have to reduce the security bond required for middle income litigants, as well. If the bond is set high enough to fully protect the in-state defendant, it may be higher than middle income out-of-state plaintiffs can afford – and thus deprive them of their day in court. (*Id.* at fn. 34.)

Based on the foregoing, the Court **GRANTS** Plaintiff's request for a waiver and excuses her from the requirement of posting an undertaking.

7.

CASE #	CASE NAME	HEARING NAME
CVRI2501757	ADAME vs WALMART INC.	MOTION FOR PROTECTIVE ORDER

Tentative Ruling:

This is a negligence and products liability action. On 4/1/2025, Irma Padilla Adame, Angel Artemio Avila Padilla, Anthony Avila Padilla, by and through his guardian ad litem, and the Estate of Marco Antonio Avila Solis (collectively "Plaintiffs"), filed their complaint against Walmart, Inc. ("Walmart"), Wardini H.A. Company ("Wardini"), and Paccar, Inc.² ("Paccar"). The complaint asserts the following causes of action: (1) premises liability (against Walmart); (2) negligence (against Walmart and Wardini); and (3) product liability (against Paccar).

The lawsuit arises out of a 12/9/2024 incident occurring at Walmart's distribution center located at 4100 Hamner Avenue, Eastvale, California, resulting in Marco Antonio Avila Solis' death ("Decedent"). (Complaint, ¶ 13.) Decedent worked as a truck driver, employed by Wardini, to transport trailers using a Kenworth T680 tractor unit that Decedent owned. (*Id.* at ¶ 14.) While attempting to complete his "work assignment," Decedent became trapped between the tractor and an adjacent trailer and perished. (*Id.*) The complaint alleges that the premises was dangerous because there were too many trucks and trailers to navigate and handle, improper supervision and procedures on site, and vehicles being left unattended. (*Id.* at ¶ 15.) Regarding Paccar, the complaint alleges the tractor was not reasonably safe as designed, manufactured, distributed, and/or sold. (*Id.* at ¶ 31.)

Now, Paccar moves for a protective order in response to a notice of deposition served by Plaintiff for a person most knowledgeable. Paccar takes issue with Plaintiffs' failure to identify the alleged defect with the T680 Tractor in written discovery and argues that this failure makes the scope of the PMK deposition overbroad. Paccar

² Erroneously sued as "Paccar Inc dba Kenworth Truck Company." References in the complaint to "Kenworth" should be read as references to Paccar.